



FORMAL COMPLAINT - Re: For Mark Collins-Cope: an important update to your payments

12 messages

Mark Collins-Cope <markcollinscope@gmail.com>

Tue, 6 Jun 2023 at 04:23

Reply to: markcollinscope@gmail.com

To: Octopus Energy <hello@octopus.energy>

Bcc: Mark Collins-Cope <markcollinscope@gmail.com>

Mark Collins-Cope

28 Waldegrave Rd, London W5 3HT.

Date as per email.

Dear Octopus Energy,

Despite my explicit instruction not to, you have today taken over £500 from my bank account without permission.

This must be refunded immediately in full. You may process the agreed direct debit after this has been done.

I wish in any case to raise a formal complaint about this. The reason for the complaint is that you acted in your own commercial interests against my explicit instructions.

This has caused me additional unplanned costs - which I will recover from yourselves. I will update you shortly on the full amount your fraudulent behaviour has incurred.

Please note your actions explicitly violate the direct debit guarantee - which makes it all the worse.

Please refund the amount taken immediately.

Please send me details of the complaint registration and your complaints procedure.

Yours sincerely,

M. C. Cope.

To book a meet/call, this is the easiest way: <https://calendly.com/markcollinscope/30min>

Mark Collins-Cope

Mobile: 0777 163 6882

<https://github.com/markcollinscope>

www.markcollinscope.online

author: agile development with iconix process (hardback - a press)

editor: www.objectviewview.online (technical ezine)

On Fri, 19 May 2023 at 22:43, Mark Collins-Cope <markcollinscope@gmail.com> wrote:

Hi,

SORRY BUT I AM NOT AUTHORISING THIS AT PRESENT.

Any attempt to take that amount of money would be met with a direct-debit recall.

You set the amounts payable - so I'm not extremely unhappy about this.

Unfortunately I am extremely busy at the moment dealing with numerous other issues - as you may have noticed the country doesn't exactly work at present.
Each of these requires around 20-30 spare hours to resolve.
Mortgage companies. Local council. Funeral services... it's never ending.

Reviewing the Octopus situation will no doubt take at least 10 hours as I will have to review **all** previous communications to see how this situation has arisen.
Hence you'll have to bear with me and give me time to get back to you. It's going to be a couple of months I'm afraid.

I will need confirmation in writing (i.e. by post) and printed copies of:

- **all** communications between us - email or other.
- copies of all bills - yours obviously - and including those of your predecessor if you are including anything 'owed' to them.
- legal justification of any amounts you are claiming based on your predecessor - ie. the legal basis on which you are entitled to anything 'owed' to your predecessor. As far as I'm aware they went bankrupt, so ceased to exist, along with their debts and credits.
- full details of how/when you have taken readings from me - and if not the basis on which any estimated bills are made.
- written confirmation of how you create the 'forecast' on which you are basing your figures.

Please confirm (BY EMAIL):

1. That you will NOT attempt any change in direct debits (if I don't receive this confirmation, I'll cancel the DD and pay by standing order).
2. the written information I have requested.

Please reply within 7 days of this email - or I'll be forced to cancel the DD as stated.

Apart from that, I do hope you're well. I appreciate you're just doing your job - and it's nothing personal, so all the best.

Kind regards,
Mark.

To book a meet/call, this is the easiest way: <https://calendly.com/markcollinscope/30min>

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Mobile: 0777 163 6882
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On Fri, 19 May 2023 at 15:41, Octopus Energy <hello@octopus.energy> wrote:

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Mark Collins-Cope
Account no. - A-A7CD64F4

=====

Hello Mark,

I hope you're well. I've been reviewing our customers' regular payments to ensure they're set to a sensible level, and noticed your payments need a big change.

Looking at forecast prices (which will start to fall from July) and estimated use, your payments really should be around the £528.09 level which is an unusually large change from what you're currently paying.

I don't want your account falling too far behind, so I'll go ahead and make the change, but please do let me know if this is completely bonkers, or it looks like something's awry with your forecast, or if you're worried you simply can't afford these payments.

It's very straightforward to change your payments to another level before your next payment goes out – you can do so online if you prefer – and if you're struggling with your bills, we can help you get financial support. We've helped thousands of Octopus customers – the most important thing is just to let us know.

Kind regards,
Jon Peters

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Your account at a glance:

Your account number: A-A7CD64F4

Your account balance: -£2,255.43

About your balance: <https://octopus.energy/help-and-faqs/categories/bills-and-payments/credit-or-debit-with-you/>

QUICK LINKS:

Change your monthly payment amount: <https://octopus.energy/dashboard/new/accounts/A-A7CD64F4/payment-details/payment-amount/>

Moving house?

<https://octopus.energy/dashboard/accounts/A-A7CD64F4/properties/3508990/move-out/>

SUPPORT DURING THE ENERGY CRISIS:

Find out what support is available this winter from the government and from Octopus.

<https://octopus.energy/blog/energy-crisis-support/>

SMART METER SUPPORT

Simple solutions and tips to make the most of your smart meter:

<https://octopus.energy/ihd-display-screen-help/>

=====

We're here to help - Just reply to this email.

Octopus Energy Limited is a company registered in England and Wales.

Registered number: 09263424.

Registered office: UK House, 5th floor, 164-182 Oxford Street, London, W1D 1NN.

Octopus Energy <hello@octopus.energy>

Tue, 6 Jun 2023 at 16:20

To: markcollinscope@gmail.com

Hi Mark,

As per my email on 22nd May I requested from you a figure to change your direct debit amount to as you did not agree with the increase and you did not provide a figure to change this amount to.

<https://octopus.energy/policies/terms-and-conditions/>

The above link is our terms and conditions if you bring your attention to section 8.2.3, "*we aim to review your direct debit at least twice a year and can offer to reduce your direct debit if it's too high based on actual meter readings or we can increase your direct debit if it is too low to help you avoid building up debt;*"

This is an OFGEM regulated practice where we are required to review and adjust direct debits to fall in line with usage.

As per our finance team's guidelines I can put a request in for the refund but the chances are it will be rejected as your account is still in debit, not billed up to date and we have not received a gas meter reading from you during your time at the property therefore do not have an accurate figure for you gas bill.

I once again ask to which figure do you want to direct debit changing to and all bills and previous correspondence will be available on your online account and emails, I can request to change your communication preference to paper deliveries but I cannot issue out already posted correspondence in a new form as our system does not allow this.

If you require the money back you would need to go through an indemnity claim with your bank as the funds have not yet cleared on our side and there is nothing to refund.

I have logged you a complaint but in regards to the resolution I need information from you:

- What is your preferred direct debit amount?
- What do you want as a resolution to your complaint.

Your complaint reference number is: **549175**

Please get back to me at your soonest convenience

Kind regards,

Adam H 

Energy Specialist & Smart Metering Operator

Team EA8

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Registered office: UK House, 5th Floor, [164-182 Oxford Street, London, United Kingdom, W1D 1NN](#)

On Mon, 05 Jun 2023 at 20:24, markcollinscope@gmail.com wrote:

Mark Collins-Cope
[28 Waldegrave Rd, London W5 3HT.](#)
Date as per email.

Dear Octopus Energy,

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This has caused me additional unplanned costs - which I will recover from yourselves. I will update you shortly on the full amount your fraudulent behaviour has incurred.
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complaint registration and your complaints procedure.

Yours sincerely,
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To book a meet/call, this is the easiest way:

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Mark Collins-Cope

Mobile: 0777 163 6882

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[domain=markcollinscope.online](https://protect-eu.mimecast.com/s/Q3klCWwBDfjA1M1nC5Sf2?domain=markcollinscope.online)

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Hence you'll have to bear with me and give me time to get back to you.

It's going to be a couple of months I'm afraid.

I will need confirmation in writing (i.e. by post) and printed copies of:

- *all* communications between us - email or other.
- copies of all bills - yours obviously - and including those of your

predecessor if you are including anything 'owed' to them.

- legal justification of any amounts you are claiming based on your

predecessor - ie. the legal basis on which you are entitled to anything 'owed' to your predecessor. As far as I'm aware they went bankrupt, so ceased to exist, along with their debts and credits.

- full details of how/when you have taken readings from me - and if not the basis on which any estimated bills are made.

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Please confirm (BY EMAIL):

1. That you will NOT attempt any change in direct debits (if I don't

receive this confirmation, I'll cancel the DD and pay by standing order).
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Please reply within 7 days of this email - or I'll be forced to cancel the DD as stated.

Apart from that, I do hope you're well. I appreciate you're just doing your job - and it's nothing personal, so all the best.

Kind regards,
Mark.

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Mark Collins-Cope

Mobile: 0777 163 6882

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<https://protect-eu.mimecast.com/s/Q3klCWwBDfjA1M1nC5Sf2?domain=markcollinscope.online>

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<https://protect-eu.mimecast.com/s/AxJ4CYQXGT3zKnKytVE77r?domain=objectiveview.online>

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About your balance:

https://protect-eu.mimecast.com/s/u__bCZwXJfM31k1WfxBTtH?domain=octopus.energy

QUICK LINKS:

Change your monthly payment amount:

<https://protect-eu.mimecast.com/s/nqfcC1Y78Fp7rPrQH1GQ40?domain=octopus.energy>

Moving house?

https://protect-eu.mimecast.com/s/gh51C2gJ5FkNLBLDSXq_DF?domain=octopus.energy

SUPPORT DURING THE ENERGY CRISIS:

Find out what support is available this winter from the government and from Octopus.

<https://protect-eu.mimecast.com/s/Qd2UC3jJ5Um5jyjrHEH5sL?domain=octopus.energy>

SMART METER SUPPORT

Simple solutions and tips to make the most of your smart meter:

<https://protect-eu.mimecast.com/s/2ginC4kK7uJpZDZwF3PWF6?domain=octopus.energy>

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Mark Collins-Cope <markcollinscope@gmail.com>
Reply to: markcollinscope@gmail.com
To: Octopus Energy <hello@octopus.energy>

Wed, 7 Jun 2023 at 02:44

This is a formal complaint. Please treat it as such. For sure you're not allowed to take money from my bank account without permission.

Please deal with this formal complaint.

Mr. M. Collinns-Cope.

[Quoted text hidden]

Octopus Energy <hello@octopus.energy>
To: markcollinscope@gmail.com

Wed, 7 Jun 2023 at 17:38

Hi Mark,

As in my previous email, we have logged this as a formal complaint and to re-iterate your reference number, it is: **549175**

Also as previously advised, you have agreed to our Direct Debit terms and conditions which you can find again in this link: <https://octopus.energy/policies/terms-and-conditions/>

I have explained that it is OFGEM's guidelines that we have to review Direct Debits at least twice a year. This is a regulation all suppliers must follow.

Please let me know what you want as a resolution to your complaint based on the above information.

Kind regards,

Adam H 

Energy Specialist & Smart Metering Operator

Team EA8

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On Tue, 06 Jun 2023 at 18:45, markcollinscope@gmail.com wrote:

This is a formal complaint. Please treat it as such. For sure you're not allowed to take money from my bank account without permission.

Please deal with this formal complaint.

Mr. M. Collinns-Cope.

On Tue, 6 Jun 2023, 09:20 Octopus Energy, hello@octopus.energy wrote:

Hi Mark,

As per my email on 22nd May I requested from you a figure to change your direct debit amount to as you did not agree with the increase and you did not provide a figure to change this amount to.

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Mark Collins-Cope

Mobile: 0777 163 6882

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[ilVoGaXJtmJk8UtQJOdTAWHsy3G1YuMUvGiLHq2nnsG1S-](#)
[2B4FxnRAFc4rRnnONlrF3TK5XVN8P2MwLKU-3D](#)

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[domain=calendly.com](#)
https://click.octopus.energy/ls/click?upn=gNLZ5SZnEeorylHeEBCuPP0d07lwSpZauyttb95mkZGDVG1iwHoDlcZLQX-2BIMRZxFg-2Ba7N1x2aURmR3ZA-2FV3FM2n4A-2F-2FdEeFs-2FFb-2FXGhCScfnJdksEQPJtW-2BHtSwaspOEPNf_rmPW-2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0mDj1Wdfv4-2BvWuDU3RzXpslIU28hY3SuK5iQuXgvqrWm-2B35MribAAyLMRqWwFPKpwxIUnj7yc2Lnb-2B7w6ytuQ-2FuAOI0sywGklZ7gcHpoCb8FmysoX43evzT0fVCSxUEd2FriRGKqq-2BJa7txcVCGqtLknMrFLI1mUrm0jwKjWd3FmDvZKp9C9-2B6mgT-2BB3JlwltxezpmN-2Br2JgVavfnrNluk-3D

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[2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0mDj1Wdfv4-2BvWuDU3RzXpsllU28hY3SuK5iQuXgvqrWm-2B35MribAAyLMRqWwFPKpw94KdmdC5Q6Rm4YvH9JReC0mZx3vSkg26w-2FydzlQfglnctCyGlrUByYhl9tnrMDnW-2BlsGio1Ephr3BkN7BpYd2ufZnbNos eKnUkVQ6wQcbGnZYBc5moTLDPyx5XjB2tcPPUMLUA-2Bh25FCnq-2F172RMY-3D](https://protect-eu.mimecast.com/s/p8avCvYJAFWDVND4Sz0oCx?domain=markcollinscope.online)

[https://protect-eu.mimecast.com/s/p8avCvYJAFWDVND4Sz0oCx?](https://protect-eu.mimecast.com/s/p8avCvYJAFWDVND4Sz0oCx?domain=markcollinscope.online)
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editor:www.objectviewview.online (technical ezine)

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QUICK LINKS:

Change your monthly payment amount:

<https://protect-eu.mimecast.com/s/M3FhCzBlGtR0Vg0nfBUOEa?domain=octopus.energy>
https://click.octopus.energy/lis/click?upn=gNLZ5SZnEeorylHeEBCuPP0d07lwSpZauyttb95mkZHdV03330USJenSSVJ2W0PwVY1HR2pLaOrQNgdcP3Dj40k66JCgZDT9RyVv6KPfbMtM8ALJyanlIgy2W0BKFcqorltR_rmPW-2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0mDj1Wdfv4-2BvWuDU3RzXpsllU28hY3SuK5iQuXgvqrWm-2B35MribAAyLMRqWwFPKpw-2BcKcPipOWJO-2BleilqZQY-2F-2FbAYLHZO25ggLfCF2FAIKhraHyxfzblyyJR2MtBDIHqaFMUvOgt8b65N6VHr0nKau-2F4y3sKxuotNpWshZqBLI4rSvSU8lglHNsZRDt7kQEQ50JKC-2F7DINbjHT3F5XkPr0-3D

Moving house?

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SUPPORT DURING THE ENERGY CRISIS:

Find out what support is available this winter from the government and from Octopus.

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https://click.octopus.energy/lis/click?upn=gNLZ5SZnEeorylHeEBCuPP0d07lwSpZauyttb95mkZH37Xc-2FOfUzOmrM3bbLLUpleY5pi6w103x1tFXyefowxF4-2Fw8K65cXfYeTB74OJPjEV9dg0C-2FZUUH7gi2fuWKbyLQVI_rmPW-2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0mDj1Wdfv4-2BvWuDU3RzXpsllU28hY3SuK5iQuXgvqrWm-2B35MribAAyLMRqWwFPKpw8l3qzjy2v1jBATIGrcPydiaiDxdkKJV7s4fV2-

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SMART METER SUPPORT

Simple solutions and tips to make the most of your smart meter:

<https://protect-eu.mimecast.com/s/-drtCDYE5FBRGvRMfn4JVZ?domain=octopus.energy>
https://click.octopus.energy/ls/click?upn=gNLZ5SZnEeorylHeEBCuPP0d07lwSpZauyttb95mkZEzURTHaO6nhwtJUuthsMEGg8t8dDPmeliduCllyJ3NJHOp8RBttQgozed1Gvu4-2FaxqTLnwa4URHxzBmMVBCH-2BPc8_x_rmPW-2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0mDj1Wdfv4-2BvWuDU3RzXpslIU28hY3SuK5iQuXgvqrWm-2B35MribAAyLMRqWwFPKpw-2BsK913RKYSBv5S2NMXCKGtQomuqSmtAi2AhU39cryZPiP2YQHwEj5NYhLLW9XGiEs2Ydu1Z8R7wOgFkGWILX3IQk1laVPf90OQ30WhjNvB1sdsIrqQPPjuNnDadSxIFkiFV5-2BEUlvNmt-2BeDoqnQhVQ-3D

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Mark Collins-Cope <markcollinscope@gmail.com>

Thu, 8 Jun 2023 at 01:29

Reply to: markcollinscope@gmail.com

To: Octopus Energy <hello@octopus.energy>

Ok. You have 8 weeks to respond. Or this goes to OFCOM.

Regards,
M. C.Copr.

[Quoted text hidden]

Octopus Energy <hello@octopus.energy>

Thu, 8 Jun 2023 at 17:01

To: markcollinscope@gmail.com

Good Morning Mark,

I hope you are well. Adam has forwarded your complaint to me as the teams complaint specialist.

I can see from the correspondence that you were not happy about the automatic direct debit review we carried out. Adam has explained why we carried out this review, as it is a regulation that OFGEM has set, that ALL suppliers must follow. This is not something we can make exceptions for.

OFGEM Ofgem is Great Britain's independent energy regulator. You can go directly to their Direct Debit Market Compliance Review using the below link, where you will find the rules we have to follow outlined clearly:

<https://www.ofgem.gov.uk/publications/direct-debit-market-compliance-review-progress-update>

Further more, we gave you ample notice before your payment was due, to give you time to amend the payments if you wished. As per our terms and conditions, we will notify you at least 5 Working Days before the direct debit is due to come out of your account. Please refer to section 8 of our terms and conditions, which are set to match the OFGEM guidelines:

<https://octopus.energy/policies/terms-and-conditions/>

Your account is in a debit of £2,138.26, and your gas bill has been estimated, as you have not given us a gas meter read since you switched over to us on 2021. I would strongly advise sending us a read, to ensure you have not been over or under charged on your gas charges, We can then compete more accurate direct debit reviews, based on accurate consumption.

With all this in mind, Adam has also asked you what you wanted your new payments to be and what you wanted as a resolution, to which you have not answered and just advised we have 8 weeks to respond. Can I ask what we need to respond to as we have provided a full explanation, and asked you what you want as a resolution?

All the best

Tina-Marina 🦑

Energy Specialist & Complaint Specialist

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On Wed, 07 Jun 2023 at 17:29, markcollinscope@gmail.com wrote:

Ok. You have 8 weeks to respond. Or this goes to OFCOM.

Regards,
M. C.Copr.

On Wed, 7 Jun 2023, 10:38 Octopus Energy, hello@octopus.energy wrote:

Hi Mark,

As in my previous email, we have logged this as a formal complaint and to re-iterate your reference number, it is: 549175

Also as previously advised, you have agreed to our Direct Debit terms and conditions which you can find again in this link:

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domain=octopus.energy](https://protect-eu.mimecast.com/s/0_qlCvYJAFWD8zNYcQg8wM?domain=octopus.energy)
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I have explained that it is OFGEM's guidelines that we have to review Direct Debits at least twice a year. This is a regulation all suppliers must follow.

Please let me know what you want as a resolution to your complaint based on the above information.

Kind regards,

Adam H 🦑

Team EA8

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[164-182 Oxford Street, London, United Kingdom, W1D 1NN](#)

On Tue, 06 Jun 2023 at 18:45, markcollinscope@gmail.com wrote:

This is a formal complaint. Please treat it as such. For sure you're not allowed to take money from my bank account without permission.

Please deal with this formal complaint.

Mr. M. Collinns-Cope.

On Tue, 6 Jun 2023, 09:20 Octopus Energy, hello@octopus.energy wrote:

Hi Mark,

As per my email on 22nd May I requested from you a figure to change your direct debit amount to as you did not agree with the increase and you did not provide a figure to change this amount to.

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<https://click.octopus.energy/ls/click?upn=gNLZ5SZnEeorylHeEBCuPB1CxpPhPs2WaDqJJMhfnrDXKhMDbE7L-2FS1F-2BOEeeFHHXAfWiPTslv3hIXYuNAEkpPsw3VCNqFMZameoQmnjBKAb5GS-2FG9tIaxR1N8ooGVVehg40MtK-2BzjYo-2BkizEY9mYWX5PJGuNzHpSJ8hdG5c3DxdbdFbc4L-2Fbs1Y1-2FocziJGjh3KdnO-2BlljnJjlvY0tzaa-2F-2FTFwRi2uBHJv1c2xBrYcV58W7DQ0TQj3iyntz7Dr8cPyMp6xEG-2Fh1uGzK1m5zs1-2Bk6vm5-2BJYH3cBH1hZ9IJ1Ui-2BmRwrkiGst7T2wrt2zodX6yf3Sxt-2B6R01Z8e1RyQYWYAbnT052esYMA3J3LtYx3qQtW1kiSfRGwbVrta6wjL5CjGfernQlIckVFvy0EpDwjOb-2FIN73q9efqayOjTLzRQ6Ik6HsQKWhqaEQCk4dLzEYWZ889LYsJsBhloLgFj-2FRW8v-2B-2F0mhT-2B7oBIBQdJRir8Jz4IRdpVxkWWj1Gu1j4BocG->

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Mark Collins-Cope

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<https://github.com/markcollinscope>

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[https://click.octopus.energy/ls/click?upn=gNLZ5SZnEorylHeEBCuPP0d07lwSpZauyttb95mkZFDgliRsGJO8W95-2FPU-2FHgDIdahw6aEaKhIsgZ6vUNevIUlqRkFFdmrHemQjoB0Puw4lJlfhVc7lFmdxqRAx4Gilzjis_rmPW-2BTwZ8pgnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0ppTM7zreWmWt79STEXF5-2FV1Buec7-2BZs3CQ0LTLtzGHNMYWZ37psIFtXpiZEw2cx1tj2xfYQ2P91-2B1Cy6fF4Y42jKZ4FqdO7ptaLNPK6lggh5iixvH5hCqkcywaF1HAPTnoHGtG-2FwPO86My-2F27znGp7-2BDtITeF-2BwwHqEhTwMgYxK45a6-2BAvklJvwG8TGMheqqm0kePZ8iWQbzVxxFFFbmw-3D](#)

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Mark Collins-Cope

Mobile: 0777 163 6882

<https://github.com/markcollinscope>

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Mark Collins-Cope <markcollinscope@gmail.com>

Thu, 8 Jun 2023 at 20:57

Reply to: markcollinscope@gmail.com

To: Octopus Energy <hello@octopus.energy>

Hello,

No you are incorrect.
My complaint is that you acted against my direct instruction and undertook an unauthorised withdrawal of money from my bank account.

The issue of what the account status is is not relevant to this.

You do not have the right to take money from my bank account without my approval. Octopus specifically did this, despite explicit instruction to not do so.

Please deal with my complaint as stated. Your response to date is irrelevant as it does not address my complaint.

Regards
M. C. Cope.

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Octopus Energy <hello@octopus.energy>
To: markcollinscope@gmail.com

Thu, 8 Jun 2023 at 22:56

Hello Mark,

My response is very much relevant to your complaint because regardless of your "direct instruction" we have regulations we must follow or face fines as a company. This stands for all of our customers and is part of the terms and conditions you agree to when setting up your direct debit.

This means we can review your direct debit based on your usage and current account balance and as long as we notify you within 5 days, we can amend your payments to follow OFGEM guidelines.

- Increased frequency of Direct Debit adequacy assessments to ensure consumers continue to pay the correct amount in line with energy usage.
- Introduction of new safeguard controls that identify and trigger an additional adequacy review where a Direct Debit amount is due to increase out with a set tolerance.

If you do not agree with our terms and conditions or the OFGEM rules, then I recommend you cancel your direct debit and pay for the bills as and when you get them. These must be cleared within 14 days of receiving them to prevent the debt process.

As you have failed to let me know what you want your payments to be changed to, they are currently at £528.09. We also need a gas meter read, to ensure that your account balance is accurate, as we have not been given one since 2021. There is a strong possibility that you may have been over or under charged,

As you are unable to tell me what resolution you want, I will have your next steps posted out to you in the next few days.

All the best

Tina-Marina 🐙

Energy Specialist & Complaint Specialist

Octopus Energy Ltd is a company registered in England and Wales. Registered number: 09263424. Registered office: UK House, 5th Floor, [164-182 Oxford Street, London, United Kingdom, W1D 1NN](#)

On Thu, 08 Jun 2023 at 12:57, markcollinscope@gmail.com wrote:

Hello,

No you are incorrect.

My complaint is that you acted against my direct instruction and undertook an unauthorised withdrawal of money from my bank account.

The issue of what the account status is is not relevant to this.

You do not have the right to take money from my bank account without my approval. Octopus specifically did this, despite explicit instruction to not do so.

Please deal with my complaint as stayed. Your response to date is irrelevant as it does not address my complaint.

Regards
M. C. Cope.

On Thu, 8 Jun 2023, 10:01 Octopus Energy, hello@octopus.energy wrote:

Good Morning Mark,

I hope you are well. Adam has forwarded your complaint to me as the teams complaint specialist.

I can see from the correspondence that you were not happy about the automatic direct debit review we carried out. Adam has explained why we carried out this review, as it is a regulation that OFGEM has set, that ALL suppliers must follow. This is not something we can make exceptions for.

OFGEM Ofgem is Great Britain's independent energy regulator. You can go directly to their Direct Debit Market Compliance Review using the below link, where you will find the rules we have to follow outlined clearly:

https://protect-eu.mimecast.com/s/kKmeCLYBoFPJgvB5tBP_8M?domain=ofgem.gov.uk
https://click.octopus.energy/ls/click?upn=gNLZ5SZnEeorylHeEBCuPONxqcd5tM5-2BRjBXFOBCpAlJODJX49Ulrj-2FV126OisTm6WW8W4MeDNj7ujNCuViXz00rNp6Kezpw-2Bqm8z-2Bqs2BcqVz-2Bf8xtC8dSneQcOltnXjqrmOR-2B4QNUaO5ZG3d9C3A-3D-3DJBju_rmPW-2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0kQnJHne793KArZKZny5PwLtEAlrOqJ-2BK6NaGdX38xxJpLgGErWvngiyQnYPDKj8Qr7IMN0-2BULds3e6P1TI8-2BNwBtOLfjGPm-2FN-2BaWTkOLgax-2Bhfu-2FWJ3Zd7gKvsPM9JBao4N9UB6v7Q-2BZaxqKxH1JkJQFdrvelWVPWIF58yC5HuABE9APR6nu-2BeA5931vlmhTSEnl-2FKsgc6InEWx3tf9kpl-3D

Further more, we gave you ample notice before your payment was due, to give you time to amend the payments if you wished. As per our terms and conditions, we will notify you at least 5 Working Days before the direct debit is due to come out of your account. Please refer to section 8 of our terms and conditions, which are set to match the OFGEM guidelines:

<https://protect-eu.mimecast.com/s/1UvFCMEBpS5QLIBGtkqChR?domain=octopus.energy>
https://click.octopus.energy/ls/click?upn=gNLZ5SZnEeorylHeEBCuPMjuD6P2dKYD4BNXAln8Gkrt8zmHr7RmVH3leB8YkoKz9APzjvjOpDwbtcq6KAD1Rw-3D-3DyglH_rmPW-2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0kQnJHne793KArZKZny5PwLtEAlrOqJ-2BK6NaGdX38xxJpLgGErWvngiyQnYPDKj8QnLkk7-2FcwmmVT0ViSwV8YtKb2JZTPnPv7pjUA-2Fd07zhHCbCg2qgiKDMKyJLwg0-

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domain=octopus.energy](https://protect-eu.mimecast.com/s/1UvFCMEBpS5QLIBGtkqChR?domain=octopus.energy)
https://click.octopus.energy/ls/click?upn=gNLZ5SZnEorylHeEBCuPP0d07lwSpZauyttb95mkZHRZGcN49sWjxausA-2BSBy7fkBZn9iiVO6xRb4UwmcAELCi3lcmPxxqhNGVsUmE-2FaeV5pNDHlyKPTAoL2uiKwlf8E8Gx_rmPW-2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0kQnJHne793KArZKZny5PwLtEAlrOqJ-2BK6NaGdX38xxJpLgGErWvngiyQnYPDkj8QqhH8BdoZI3rUlfhKV30kqVKuqS2XBd3cLHTqsjg5kv5uM8aUzd1i5kKnA-2Blzz3UPMw-2FYjBTI1HeCEaj-2FcuraprYFZkApPSZuT-2Bkf-2F8iiQMw99Dh2-2BCsRK4kLtqLXtbPfShuKxj9qzFOC60c76KrTE0-3D

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I have explained that it is OFGEM's guidelines that we have to review Direct Debits at least twice a year. This is a regulation all suppliers must follow.

Please let me know what you want as a resolution to your complaint based on the above information.

Kind regards,

Adam H 

Energy Specialist & Smart Metering Operator

Team EA8

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Registered number: 09263424. Registered office: UK House, 5th Floor,
[164-182 Oxford Street, London, United Kingdom, W1D 1NN](#)

On Tue, 06 Jun 2023 at 18:45, markcollinscope@gmail.com wrote:

This is a formal complaint. Please treat it as such. For sure you're not allowed to take money from my bank account without permission.

Please deal with this formal complaint.

Mr. M. Collinns-Cope.

On Tue, 6 Jun 2023, 09:20 Octopus Energy, hello@octopus.energy wrote:

Hi Mark,

As per my email on 22nd May I requested from you a figure to change your direct debit amount to as you did not agree with the increase and you did not provide a figure to change this amount to.

[https://protect-eu.mimecast.com/s/1UvFCMEBpS5QLIBGtkqChR?
domain=octopus.energy](https://protect-eu.mimecast.com/s/1UvFCMEBpS5QLIBGtkqChR?domain=octopus.energy)

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Mark Collins-Cope

Mobile: 0777 163 6882

<https://github.com/markcollinscope>

https://click.octopus.energy/ls/click?upn=gNLZ5SZnEeorylHeEBCuPALvruyo-2FKch99en55VEqATY-2Bzji6iaPGVMQzDodcqFZZ0pz_rmPW-2BTwZ8pqnQkFrjkBVz9WZhRqmgzOvBPQSQqMRPjSayivcu7NtpTGyG2az-2Bd2PZ-2FluKeWSLQps7rVpwo4V0kQnJHne793KArZKZny5PwLtEAlrOqJ-2BK6NaGdX38xxJpLgGErWvngiyQnYPDkj8QrAg3vqQ1BLvZCQtToRZJXqdHh-2FWz3NZak191gTAze0W-2BXgVQTsKp07Qbc36wgLcFrzQjv6lPxxhiybqX9LAo1JJqVPtXsgXukuBu-2FGej-2B8YBFVclMZnxzfPIKEy-2BXLgy0R5dzdxJZd981ys2cGeds4-3D

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<https://click.octopus.energy/ls/click?upn=gNLZ5SZnEeorylHeEBCuPALvruyo-2FKch99en55VEqATY-2Bzji6iaPGVMQz>

Reply to: markcollinscope@gmail.com

To: Octopus Energy <hello@octopus.energy>

Hello Tina 🐙,

First of all - please be assured my only objective here is to come up with a mutually agreeable resolution. That may take a little while, however I'm sure we can do that.

Having said that, there were a few questions I had about your response - basically I need clarification on what exactly you're saying. Please be sure I intend no disrespect to you or your colleagues.

I'll be somewhat terse and straight to the point - however that's just because I want to be clear.

Misunderstanding is the root of many a problem!

So...

My 'summary response' to your email to me.

Firstly you mention Ts and Cs and 'agreements/contracts' between us. However please note the following facts:

- I never asked to join Octopus in the first place.
- I've never agreed to any terms and conditions nor have I ever received any from yourselves.
- I do not consider myself bound by any contract unless I've actually signed it. Lawyers, you will no doubt be aware, are very sure to get a signature from customers before undertaking any work, no doubt for this reason.
- I cannot be said to have agreed to anything I am not actually aware of.

You so seem to be saying to me that: you *had* to increase my direct debit by £300+ because Octopus Energy would be fined otherwise. You also say you can do it at five days notice, apparently regardless of what I say, or even if I have the money in the bank!

This seems completely unreasonable to me, and I do doubt OFGEM would fine you because you took the time to make an agreement over an (alleged) debt. So I cannot say I find that response acceptable. I also note that the Direct Debit Guarantee scheme, which I assume you also must comply with (correct me if I am wrong) says otherwise.

Perhaps I have misconstrued what you said, but I do not believe you would have been fined for not increasing my direct debit.

I guess we'll find out if this complaint ends up getting escalated to OFGEM - which I do hope is not necessary.

Finally, I note that I have - apparently - been your customer for 18 months or so. Given this - it is completely unreasonable to dump an alleged debt without a mutually agreed resolution.

I note that you set the rate for the direct debit. So if there is any shortfall it is down to **your error**. As you say (Octopus Energy says) - you should review the situation on a regular - six monthly - basis. You clearly didn't do that.

It is therefore completely unacceptable to attempt to force a resolution on me, especially at 5 days notice! I think you'll find that this would be considered unacceptable from a legal perspective as well. But hopefully we don't have to go there, though I've done it quite a few times in the past.

In terms of a resolution - which I have indicated previously - I see this as the following:

1. You refund the direct debit immediately, then take the agreed amount as soon as you've done that.
2. You send me copies of all bills, etc in paper form - including copies detailing any 'starting balance' and 'starting readings' from my previous supplier - in order I can see what our starting point is. It's important you can justify any starting position to me.

3. You supply me with whatever legal justification you have for including any amounts you include payable to a previous supplier.

3. Once I've got these - we then agree to a timescale to resolve the matter - likely about a month.

4. During that period we negotiate a repayment mechanism for any agreed 'debt' (I do have to check everything, please note). Such a repayment mechanism would have to be over a long enough timescale that it is financially a viable option for me.

I do hope you can agree to this.

I have annotated your email to me below where I need clarification / further information. Could you please address the points I raise. Please note this is all 'on the record' should this situation need escalating.

Dealing with your points as you raise them:

My response is very much relevant to your complaint because regardless of your "direct instruction" we have regulations we must follow or face fines as a company.

This stands for all of our customers and is part of the terms and conditions you agree to when setting up your direct debit.

I've numbered my points to clearly distinguish between them. Please respond point by point if you wish to respond.

1.

First of all, this is a commercial banking issue - and you have violated the direct debit guarantee scheme terms.

2.

Direct debits only work if there is a situation of trust between the parties. As you have now violated that trust in a way which has

a) cost me money due to taking an unauthorised amount.

b) makes it impossible for me to plan financially...

(in short: you have acted unreasonably)

... I don't see how I can continue with a direct debit.

However I'm prepared to set up a standing order on a monthly basis - please give me the details of your account number, sort code and any reference I should supply.

3.

I would also note that the logical conclusion of your statements is that Octopus Energy can take what they want from my bank account, by sending an email (an unreliable means of communication I would add) and just taking the money. That's just unreasonable and would fall foul of the relevant unreasonable contracts legislation - which I'm sure you're aware of.

4.

I also note that **I have never entered into any agreement with Octopus Energy**. I never asked you to supply me with power, nor have I signed or even received any contractual notification or agreements with yourself. QED: no contract exists between us.

5.

To ensure this type of situation does not arise in the future:

Please send anything that is contractual in nature via the post. As a standing point - i.e. valid now and going forward, I do not agree with anything sent (i.e. I am not entering into a contract about anything) unless I sign and return it. That includes updated Ts and Cs and anything else, for that matter.

6.

Please clarify the following:

Are you saying that **if you had not taken money on the direct debit - you would have been fined?** Please be clear about this - as this complaint may well be escalated to OFCOM. Please answer Yes or No. If No - you're welcome to clarify what you're saying.

?

7.

This means we can review your direct debit based on your usage and current account balance and as long as we notify you within 5 days, we can amend your payments to follow OFGEM guidelines.

- Increased frequency of Direct Debit adequacy assessments to ensure consumers continue to pay the correct amount in line with energy usage.

7.1

Re: 5 days...

Well, the direct debit guarantee scheme says otherwise.

And to be clear here - you're saying that you'd be fined if you didn't increase a direct debit by £320 (i.e. 300% increase) at five days notice?

7.2

Please clarify here: does the term 'usage' mean estimated usage or actual usage?

?

8.

- Introduction of new safeguard controls that identify and trigger an additional adequacy review where a Direct Debit amount is due to increase out with a set tolerance.

I hope you understand that, because it does not make any sense to me. You have two bullet points in isolation - which do not logically follow from the preceding statements - i.e. two sentences that stand alone - and make no sense (to me at least). No disrespect is intended here - I just seek clarity in exactly what you're saying to me.

9.

9.1

The term "Guidelines" sound to be like 'lines which are meant to *guide* you' - however that's different to 'rules which *you have to follow*'.

Please clarify.

?

- If you do not agree with our terms and conditions or the OFGEM rules, then I recommend you cancel your direct debit and pay for the bills as and when you get them. These must be cleared within 14 days of receiving them to prevent the debt process.

9.2

I have no idea what your terms and conditions are. I'm not a mind-reader, and you've never told me them. It's challenging to decide if I 'agree' with something when I don't know what is to be agreed to. I refer you to my previous point about the nature of a contract: being an agreement between two parties.

Re: Bills, etc. Well, if you've previously miscalculated etc on the amount I should be paying then you have to give me time to repay it.

9.3

As I said, I have never agreed anything - if for no other reason than you've never told me anything that I should agree to, nor asked me to agree to anything.

Please note: that is simply a fact at this point in time, and no matter what happens going forward - it is the facts at this point in time that govern the resolution of this matter.

So to be crystal clear: no change made in the future would be retrospective.

-

As you have failed to let me know what you want your payments to be changed to, they are currently at £528.09. We also need a gas meter read, to ensure that your account balance is accurate, as we have not been given one since 2021. There is a strong possibility that you may have been over or under charged,

10.

This statement - implies that you've actually asked me what I want my payments to be. **You haven't.**

To be clear: at no point have Octopus Energy ever asked me what I 'want' my payments to be.

As I have previously stated:

I do not agree with your payments and I do not understand the basis on which you have made them.

Please clarify.

In particular I do not agree with £528.09 and you do not have permission to make such deductions via direct debit or otherwise from my account.

11.

* You said: "As you are unable to tell me what resolution you want, I will have your next steps posted out to you in the next few days."

Again - this is a deliberately misleading statement as

1. You haven't asked me to, and

2. In fact I did give clear instructions on how to resolve the situation (in the short term at least) in my email to your colleague.

However to clarify (so you don't have to post out next steps; the wording of your sentence clearly implies that the reason you would post out next steps is because you don't know what 'resolution' I want).

I have detailed a proposed reasonable approach to resolution above.

12.

Please note: any shortfall in payments is solely Octopus Energy's responsibility, and is certainly not mine.

I did not choose the amount taken every month. From what you say, you've had 18 months to review this situation, so dumping a massive 'debt' on me for an alleged 18 months of 'underpayment' (caused by your errors) at five days notice is clearly **not reasonable** - in any way, shape or form.

Given the current 'cost of living crisis' - Octopus Energy's errors will require some time to resolve financially, should that be the way forward.

I look forward to hearing from you.
Regards,
M. C. Cope.

Mark Collins-Cope <markcollinscope@gmail.com>

Sat, 17 Jun 2023 at 01:27

Reply to: markcollinscope@gmail.com

To: Octopus Energy <hello@octopus.energy>

[MESSAGE RESENT - TRY #2 - NO RESPONSE RECEIVED]

[Quoted text hidden]

--

Mark Collins-Cope

Mobile: 0777 163 6882

[nb: please text or email - I don't use the voicemail at all, thank you.]

**** some of my work related links below - feel free to check them out ****

<https://github.com/markcollinscope>

[editor: www.objectviewview.online](http://www.objectviewview.online) (technical ezine)

[Quoted text hidden]

Octopus Energy <hello@octopus.energy>

Sat, 17 Jun 2023 at 01:28

To: markcollinscope@gmail.com

Thanks for getting in touch, and sorry you're waiting on us. We're dealing with an unusually large number of customer requests right now, so it's taken longer than we'd like to get back to you.

We've received your reply and our team are working towards it. We'll get back to you as soon as possible.

Octopus Energy <hello@octopus.energy>

Tue, 20 Jun 2023 at 21:30

To: markcollinscope@gmail.com

Hi Mark,

Thank you for your email and I am sorry I did not get back to you straight away, I was on annual leave last week and currently catching up on messages.

I am in agreement with you and would like to help you find a resolution that suits you and I am sorry if I sounded abrupt in my last email. I did not mean to come across that way and I know with emails the tone can get lost.

Would you find it easier and quicker if we arrange to catch up over the phone? It might help us avoid any misunderstandings on either side and allow you to ask any questions you have without waiting for replies back and forth.

All the best

Tina-Marina 🐉

Octopus Energy Ltd is a company registered in England and Wales. Registered number: 09263424.
Registered office: UK House, 5th Floor, [164-182 Oxford Street, London, United Kingdom, W1D 1NN](#)

On Fri, 16 Jun 2023 at 17:28, markcollinscope@gmail.com wrote:

[MESSAGE RESENT - TRY #2 - NO RESPONSE RECEIVED]

----- Forwarded message -----

From: Mark Collins-Cope markcollinscope@gmail.com

Date: Mon, 12 Jun 2023 at 20:01

Subject: Re: Re: Re: Re: FORMAL COMPLAINT - Re: For Mark Collins-Cope: an important update to your payments

To: Octopus Energy hello@octopus.energy

Hello Tina 🐙,

First of all - please be assured my only objective here is to come up with a mutually agreeable resolution. That may take a little while, however I'm sure we can do that.

Having said that, there were a few questions I had about your response - basically I need clarification on what exactly you're saying. Please be sure I intend no disrespect to you or your colleagues.

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I have annotated your email to me below where I need clarification / further information. Could you please address the points I raise. Please note this is all 'on the record' should this situation need escalating.

Dealing with your points as you raise them:

My response is very much relevant to your complaint because regardless of your "direct instruction" we have regulations we must follow or face fines as a company.

This stands for all of our customers and is part of the terms and conditions you agree to when setting up your direct debit.

I've numbered my points to clearly distinguish between them. Please respond point by point if you wish to respond.

1.

First of all, this is a commercial banking issue - and you have violated the direct debit guarantee scheme terms.

2.

Direct debits only work if there is a situation of trust between the

parties. As you have now violated that trust in a way which has

a) cost me money due to taking an unauthorised amount.

b) makes it impossible for me to plan financially...

(in short: you have acted unreasonably)

... I don't see how I can continue with a direct debit.

However I'm prepared to set up a standing order on a monthly basis - please give me the details of your account number, sort code and any reference I should supply.

3.

I would also note that the logical conclusion of your statements is that

Octopus Energy can take what they want from my bank account, by sending an email (an unreliable means of communication I would add) and just taking the money. That's just unreasonable and would fall foul of the relevant unreasonable contracts legislation - which I'm sure you're aware of.

4.

I also note that *I have never entered into any agreement with Octopus Energy*. I never asked you to supply me with power, nor have I signed or even received any contractual notification or agreements with yourself. QED: no contract exists between us.

5.

To ensure this type of situation does not arise in the future:

Please send anything that is contractual in nature via the post. As a standing point - i.e. valid now and going forward, I do not agree with anything sent (i.e. I am not entering into a contract about anything) unless I sign and return it. That includes updated Ts and Cs and anything else, for that matter.

6.

Please clarify the following:

Are you saying that *if you had not taken money on the direct debit - you would have been fined*? Please be clear about this - as this complaint may well be escalated to OFCOM. Please answer Yes or No. If No - you're welcome to clarify what you're saying.
?

7.

This means we can review your direct debit based on your usage and current account balance and as long as we notify you within 5 days, we can amend your payments to follow OFGEM guidelines.

- Increased frequency of Direct Debit adequacy assessments to ensure consumers continue to pay the correct amount in line with energy usage.

7.1

Re: 5 days...

Well, the direct debit guarantee scheme says otherwise.

And to be clear here - you're saying that you'd be fined if you didn't increase a direct debit by £320 (i.e. 300% increase) at five days notice?

7.2

Please clarify here: does the term 'usage' mean estimated usage or actual usage?

?

8. ◦ Introduction of new safeguard controls that identify and trigger an additional adequacy review where a Direct Debit amount is due to increase out with a set tolerance.

I hope you understand that, because it does not make any sense to me. You have two bullet points in isolation - which do not logically follow from the preceding statements - i.e. two sentences that stand alone - and make no sense (to me at least). No disrespect is intended here - I just seek clarity in exactly what you're saying to me.

9.

9.1

[Quoted text hidden]

[Quoted text hidden]

This statement - implies that you've actually asked me what I want my

payments to be. *You haven't.*

To be clear: at no point have Octopus Energy ever asked me what I 'want' my payments to be.

As I have previously stated:

I do not agree with your payments and I do not understand the basis on which you have made them. Please clarify.

In particular I do not agree with £528.09 and you do not have permission to make such deductions via direct debit or otherwise from my account.

11.

- You said: "As you are unable to tell me what resolution you want, I will have your next steps posted out to you in the next few days."

Again - this is a deliberately misleading statement as

1. You haven't asked me to, and
2. In fact I did give clear instructions on how to resolve the situation

(in the short term at least) in my email to your colleague.

However to clarify (so you don't have to post out next steps; the wording of your sentence clearly implies that the reason you would post out next steps is because you don't know what 'resolution' I want).

I have detailed a proposed reasonable approach to resolution above.

12.

Please note: any shortfall in payments is solely Octopus Energy's

responsibility, and is certainly not mine.

I did not choose the amount taken every month. From what you say, you've had 18 months to review this situation, so dumping a massive 'debt' on me for an alleged 18 months of 'underpayment' (caused by your errors) at five days notice is clearly *not reasonable* - in any way, shape or form.

Given the current 'cost of living crisis' - Octopus Energy's errors will require some time to resolve financially, should that be the way forward.

I look forward to hearing from you.

Regards,

M. C. Cope.

--

Mark Collins-Cope

Mobile: 0777 163 6882

[nb: please text or email - I don't use the voicemail at all, thank you.]

**** some of my work related links below - feel free to check them out ****

<https://github.com/markcollinscope>

editor: <https://protect-eu.mimecast.com/s/cnQXCLYBoFP7Q8mvHBXwD5?domain=objectiveviewview.online> (technical ezine

<https://protect-eu.mimecast.com/s/ej1RCMEBpS57zmRIHkn0I7?domain=objectiveviewview.online>)

author: agile development with iconix process (hardback - apress)

<https://protect-eu.mimecast.com/s/HCc4CNE1qSNzjyERSj-7Qw?domain=amazon.co.uk>